FOUR

Closed Borders

WHEN STATES CLOSE THEIR BORDERS to immigrants, serious consequences often follow. Those who are excluded may be desperate to enter, and so there occur human tragedies, such as the Mexicans who die of hypothermia while trying to cross the southern desert of Arizona or the refugees from the conflicts of North Africa and Syria who drown when their overcrowded boats founder en route to southern Europe. The death of illegal migrants is the most extreme case, but since states go to great lengths to ensure that such people do not reach their territories, the human rights of many others are unavoidably infringed.[1] People with humane values may ask whether the cost of keeping immigrants out can be justified, even if they have no human right to enter, as Chapter 3 maintained. The state's right to close its borders needs a strong defense, therefore, and the aim of this chapter is to see how far it is possible to give one.

My intention is not to lay down any particular immigration policy as the correct one for democratic states to pursue, and certainly not to argue that borders should always be kept closed. These are matters to be decided by democratic means within each state. Instead my aim here is to show that policies that involve selecting some migrants and excluding others are legitimate, by outlining some of the reasons that can justify them, as well as responding to some objections that open-borders advocates may raise. I do

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not here consider cases in which immigrants have urgent claims to be admitted that may override the state's right to exclude them, nor at this stage do I distinguish between just and unjust grounds for choosing between immigrants—these issues are postponed until later chapters. I want simply to show that there may be reasons for restricting immigration that are substantial enough to outweigh the undoubted costs of enforcing the restrictions.

In popular political discourse, it is often asserted that control over borders is straightforwardly a matter of state sovereignty. States are sovereign, it is said: they have an absolute right to decide what goes on within the territories that they legitimately control, and supervising border crossing is simply one aspect of this. People who make this argument imply that the choice is either to have states, together with the range of powers that they are normally understood to possess, or else to invent some new (and untried) form of political organization. Assuming the first alternative, there is no need to justify the right to control borders specifically, any more than there is to justify, say, the state's right to have an army or issue its own currency.

This appeal to sovereignty, however, is too quick. It first takes for granted the sovereign state, by which is meant an institution that has final and absolute authority over a territory,[2] as the best form of government, thus preempting any debate over the merits of possible alternatives that involve dispersing power between higher and lower level institutions (such as in federal systems or in the EU). It further assumes that there is no problem in extending the arguments that are made in favor of sovereignty vis-à-vis domestic society to authority that is directed toward people who are not yet members of the society in question. Even if you agree with Hobbes that social order will break down unless sovereigns are given unlimited rights to rule over those who have covenanted to create them, it does not follow that they can exercise the same rights toward outsiders—or at least not without further argument. So even though the political conventions of our day do treat the right to control borders as simply one incident of sovereignty, we need to dig deeper to see whether this practice is justified or not.

A more promising approach appeals not to sovereignty but to the idea of territorial jurisdiction. The claim here is that having rights of jurisdiction over a given territory implies having the right to control the movement of people in and out of that territory, so that where a state can legitimately

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exercise jurisdiction it is also entitled to exclude immigrants if it so wishes. This claim needs some unpacking: first we need to establish what jurisdiction means and how it originates, and then we must examine the implied connection with border controls.

Having jurisdiction over a territory means possessing and exercising the right to make and enforce laws throughout that area of land, laws that apply to everyone who is physically present on the territory. As normally understood, this means that the main corpus of law is applied uniformly throughout the area, though there may be local bylaws made by subsidiary bodies set up under the authority of the state that exercises jurisdiction. The effect is that whenever people interact on the territory, whether person to person or by virtue of the property they own, they do so in the knowledge that their transactions will be governed by a body of rules that apply in the same way to all, a necessary though not sufficient condition of justice. The advantages to the inhabitants of being subject to jurisdiction in this sense should be too obvious to need spelling out.[3] But under what conditions can a state rightfully claim territorial jurisdiction? After all, the total amount of land in the world is finite, and by asserting such a claim, the state prevents other possible contenders from establishing a political community in the same place. Most notably, those who are attracted by the idea of the common ownership of the earth, as discussed in the last chapter, might wonder how a particular institution can claim a monopoly right to govern a particular portion of that space—especially if it then proceeds to control entry to the portion it has appropriated.

I believe that for a state rightfully to claim jurisdiction over a territory, three conditions must be met. First, it must maintain social order and protect the human rights of the inhabitants to a sufficiently high degree.[4] Exactly where the bar should be set in applying this condition is difficult to determine, since among other things no state has succeeded in eliminating all criminal activity on its territory, but intuitively we can distinguish between cases in which a well-functioning legal system provides an environment in which most residents are able to go about their lives without the threat of personal violence, theft, destitution, and so on and cases where the opposite is true. Second, the state must represent the inhabitants of the territory. This requirement needs a little more discussion. The underlying idea is that the populace should regard the state as having legitimate authority over

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them, and this is meant to exclude cases in which social order is established simply through cowing them into submission, whether at the hands of a military dictator or an invading force that has failed to obtain the consent of the inhabitants. One way in which this condition can be met is through having a democratically elected government, which is thereby representative of the population in a strong sense. But democracy is not always necessary. Legitimacy can be conferred in other ways, for example, by inherited allegiance to a ruling family or by recognizing the supreme authority of religious leaders. The third and final condition is that the people whom the state represents should themselves have the right to occupy the territory in question. This means in particular that a state cannot establish territorial rights by expelling most of the rightful occupants of a region and replacing them with its own subjects, even though after the population transfer it can then claim to represent the majority of current inhabitants.

How is legitimate occupancy to be established? The simplest case will be where a group of people settle on unoccupied land and then reside on it continuously: their title appears to be unchallengeable.[5] But more often the movement and mingling of populations over the course of history gives rise to disputes over the identity of "the people" who are entitled to establish jurisdiction in any area (we see this happening especially when secessionist movements arise). Here political philosophers disagree about the basis on which claims to territory can be advanced, some theories invoking individual rights to property, others treating occupancy as a collective right, but differing over the features that qualify a group to make justified occupancy claims.[6] Elsewhere I have defended a nationalist account that vests rights of occupation primarily in groups with shared national identities that over time have transformed the land at stake, typically endowing it with both material and symbolic value.[7] I shall return shortly to discuss the role that national identity may play in thinking about immigration, but for present purposes the debate about the source of occupancy rights matters less than the connection between occupancy and jurisdiction. Where a group has the right to occupy an area, a state that represents the group and that meets the first condition for jurisdiction—maintaining social order and protecting human rights—is entitled to exercise it.

As conventionally understood, the right to territorial jurisdiction brings with it at least two further rights: the right to control and use the resources

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that the territory contains, and the right to control the movement of goods and people across its borders. These three rights are bundled up together as "territorial rights" and ascribed to states. But the reasons for this bundling may not be obvious: there is no logical necessity why the three rights must be held together by a single institution. There is, for example, nothing self-evidently wrong with the idea that resource management within a territory should be handed over to an international body while legal jurisdiction remains with the relevant state. Such a proposal may face serious practical difficulties, but these need to be spelt out. The same applies to border restrictions: it is not self-evident that jurisdiction also requires control over entry to the territory. A public park can have a set of rules governing behavior in the park, and the park wardens can enforce these without also being able to exercise any control over who enters the park and who doesn't. So how is territorial jurisdiction different?

It is at least arguable that any legal system worthy of the name requires a degree of stability in the population that it serves. In order for offenders to be charged, witnesses summoned, juries commissioned, and so forth, most people have to be living in known places of residence. However, this requirement only imposes a weak constraint on the level of migration, one that is not likely to be exceeded in practice. To discover a stronger constraint, we have to move beyond the bare idea of a legal system and consider the full range of social responsibilities carried by a modern democratic state. We have, in other words, to think about employment, housing, education, health care, social security, and the like. These are all matters that fall within the jurisdiction of the state, which creates legal rights to ensure that their bearers have access to the services in question. Some of these rights also qualify as human rights.[8] Because, as noted earlier, the state's very legitimacy depends upon its ability to protect the human rights of all those who are present on its territory, this responsibility must extend to the rights of immigrants.[9] It may be permissible to withhold *some* rights to employment, health care, and other benefits from recently arrived immigrants—this is an issue to be explored in detail later in the book—but not the rights that are basic enough to count as human rights. Thus, if an immigrant is seriously injured in a road accident or set upon by thugs, the public health service (or its equivalent) must treat her. Equally, the state, as an aspect of its jurisdiction, must produce sufficient opportunities for employment, education, and so

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forth to protect the rights of the immigrants it admits. As I noted in Chapter 1, this is one of the main features that distinguishes modern liberal societies from their nineteenth-century predecessors, in which over and above the basic protection afforded by the law, immigrants were left to fend for themselves.

Does it follow that jurisdiction must include the right to control inflows? Not in the strictest sense because a state might choose to precommit the resources to cover the rights of all the people who might wish to enter—potentially, let us note, a very demanding decision. So the argument about jurisdiction needs to be complemented by an argument about self-determination in order fully to justify the right to close borders.[10] By self-determination here, I mean the right of a democratic public to make a wide range of policy choices within the limits set by human rights. Among the most important choices are precisely those that concern levels of public expenditure on housing, schools, hospitals, and so forth (I come back later to consider cultural choices). Since, for the reasons just given, both the rate of immigration and the personal characteristics of the immigrants (such as their likely education and health needs) will affect all of these measures, immigration control is an essential lever in the hands of the demos. Deprived of that lever, it loses control of those expenditures, unless it decides to abandon liberal principles and deprive the incomers of these essential services.[11] The argument here, to avoid misunderstanding, is not that a self-determining political community *must* close its borders, but that it must have the *right* to control its borders in order to preserve a meaningful range of policy choices without detriment to the human rights of those it chooses to admit.

A critic might argue at this point that self-determination is not of sufficient value to justify closing borders, given the human costs of doing so. I shall examine this claim in the second part of this chapter when I consider challenges to the case for closed borders. For the time being, I will assume that self-determination, especially when it takes a democratic form, is something of considerable value, and consider some further ways in which it may require border controls to be put in place. Notice next that when immigrants are admitted, their presence will over time change the composition of the citizen body or, in other words, the "self" in "self-determination." I assume here, as before, that all immigrants who become permanent residents should be eligible to apply for citizenship after a suitable period of

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time has elapsed unless disqualified by virtue of serious criminality. It is also reasonable to assume that their participation will significantly change the decisions that the demos takes, because immigrants will not simply replicate the indigenous population with respect to their beliefs, values, interests, cultural preferences, and so forth. Now self-determination is usually understood to include the right to control membership of the body that decides, subject to the usual human rights provisos. One way to see this is to think of a state that wishes to amalgamate with its neighbor: the second state, we would normally assume, has the right to refuse—this is what self-determination demands. It cannot be required to fuse its citizen body with that of its neighbor. But why does self-determination matter in the first place? A large part of its value is that it gives us, as citizens, some degree of control over what happens to our political community in the future. We can make long-term plans, such as creating protected areas for endangered species of plants or animals or investing in infrastructure whose benefits will mainly be reaped by our children. But this planning will be thwarted if changes in the composition of the citizen body mean that these decisions are later reversed.

A critic might again object here that no self-determining group of citizens can wholly protect itself from changes that might lead to its present decisions being revoked. Some members of the current majority may simply change their minds. More likely, generational replacement will produce a new demos whose values and priorities are different from its predecessor. Since we cannot disenfranchise our children, we cannot guarantee that they will not undo what we have done.[12] But note that, as a matter of observable fact, normal processes of education and socialization will mean that there is a good deal of continuity between our thinking and theirs, unless traumatic events (such as the Holocaust and the defeat of Nazism) cause a generational rupture in the public culture.[13] Immigrants present a different case. Of course they will be subject to cultural pressure to adopt some of the norms of the receiving society, and this process can be helped along by formal citizenship education as a prelude to acquiring citizenship itself. But as I noted in Chapter 1, in modern liberal societies there is a presumption that this will not extend to all areas of culture. On the contrary, immigrants are encouraged not only to retain but to celebrate some of the cultural traits that they bring with them—their styles of dress, their music, their religious festivals, their languages, and so on. The citizen body now contains minorities who

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can quite rightly ask for policy shifts that will accommodate their cultural needs, such as public subsidies or changes in the pattern of the working week. From the perspective of the indigenous majority, these demands may be welcome or unwelcome—it depends on the case. Immigration can often add spice to a previously dull national culture. What is clear is that scope of free choice has been limited by adding new members to the citizen body with demands that must be accommodated if basic liberal principles of equal treatment and respect for minority interests are to be observed. The larger the volume of immigration and the more diverse the background cultures of the immigrants, the tighter these limits will be.

There is a second, rather different, way in which admitting immigrants may affect democratic self-determination. There is evidence that cultural divisions among the members of a political community may reduce both interpersonal trust and trust in political institutions This reduction by no means entails the end of democracy, but it may change the way in which democratic institutions function.[14] It will become less likely that these institutions can operate in a deliberative manner, in which participants try to reach a consensus on what is to be done, guided by general considerations of fairness to all affected parties. Deliberation requires confidence that the concessions you are willing to make in the search for an agreement will be reciprocated by other participants, that participants are sincere in the reasons they give in support of their demands, and so forth. Where trust is lacking, deliberation is likely to be replaced by self-interested bargaining on the part of each group, where the outcome reflects the balance of power between them. This has a number of side effects. One is that it becomes less likely that *public goods* will be provided, since suspicious group representatives would rather bargain for goods that only their own members can enjoy.[15] Another is that it becomes harder to gain support for policies that involve economic redistribution in favor of the poor, again for the reason that general considerations of social justice are displaced by group-specific demands.

So trust is important to a well-functioning democracy, but how does this relate to immigration? The effect of immigration is normally to increase ethnic and religious diversity in the host society, and as we saw in Chapter 1, most social scientists believe that a further effect is to reduce interpersonal trust.[16] However, the relationship is not straightforward. One variable factor is the degree to which the society becomes segregated, with incoming mi-

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nority groups clustering in urban ghettos—or on the other hand, integrated through participation in voluntary associations and political movements that cut across ethnic and religious divisions.[17] Another is the presence or absence of an inclusive national identity which can provide a bond that overrides sectional identities. Public policy, therefore, can be used to offset the potentially damaging effects of immigration on trust by encouraging integration and promoting a shared identity (I discuss this at much greater length in Chapter 8). The conclusion we should draw is not that immigration should be stopped forthwith, but that we should include among its possible costs a decline in trust and the ensuing political consequences—or else the cost of the measures needed to ensure that integration is successful. As I suggested in Chapter 1, economic assessments of immigration tend to leave these factors out of the equation when calculating costs and benefits. A democratic policy decision on the size and composition of the immigrant cohort needs to include them.

Let me end this part of the discussion with one further reason that states may have for controlling immigration flows: the overall size of their populations.[18] Population size properly looms large as a public policy issue to be decided democratically, whether the receiving nation is an underpopulated state wanting to develop its agricultural base by bringing new land into cultivation or an overpopulated state trying to limit pressure on its housing stock or its transport system. So far this is just a matter of domestic political priorities that will either welcome or discourage immigration as the case may be. But a bigger issue is the size of the global population. It now seems clear that preventing this from rising far beyond the seven billion people who currently exist is one of the main tasks of the present, alongside other measures to curb global warming and resource depletion. Indeed there are grounds for thinking that the environmentally sustainable population size for the planet is a good deal less than seven billion, so the aim ought to be gradually to reduce existing numbers until that point is reached. Migration does not of course affect the size of the global population directly. But just as global warming can only be combatted effectively by each state agreeing to limit its domestic carbon emissions under the terms of an international treaty, so population growth can only be halted if each state sets a target for its own population (since some states will find it hard to prevent further increases, other states should aim to shrink theirs). Such a policy cannot realistically

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be pursued if borders are open, particularly were a society to attempt to adopt tough measures such as the (now abandoned) Chinese one-child policy in order to restrict its numbers: even a much less draconian version of this policy would inevitably be rejected by citizens if at the same time immigrants are free to enter at will.

It is sometimes argued in response to these points that if people migrate from poor to rich countries, they are likely to have fewer children because they will adjust to the social norms of their new milieu (this may not happen immediately, but let's assume that over time it will). However, if population growth matters mainly because of its implications for global warming and resource depletion, immigrants who adopt Western lifestyles will consume more and induce more carbon emissions through their demand for energy: so the net environmental effect of migrating may be negative even if family sizes are smaller as a result. Of course one can argue that the real solution is to transform *everyone's* lifestyle so that it no longer has the catastrophic global effects of present-day rich world patterns, but until that happens migration is likely to be bad news for the planet overall even if it does reduce the incentive, on the part of migrants, to have large families. As I argued earlier, policies to restrict population growth, policies to reduce greenhouse gas emissions, and policies to ensure that natural resources are used sustainably are not alternatives to each other but essential complements. States need to pursue all three in tandem, and immigration control is one of the tools they must have at their disposal if they are to do so effectively.

So far in this chapter, I have been setting out the main positive reasons for granting states the right to control their borders; in the remainder of it, I want to extend the argument further by considering three challenges to the case I have just outlined. The first challenge holds that the argument about the cultural composition of the demos mistakenly assumes that without immigration we would have a culturally homogenous body of citizens—whereas in fact liberal societies already exhibit a high level of cultural diversity.[19] The second challenge maintains that, even if immigration limits the scope for self-determination (as argued earlier), political self-determination is simply not an important enough value to outweigh the pressing claims to enter that immigrants may make.[20] And the third challenge says that ex-

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cluding immigrants is a form of coercion, and no state can be justified in coercing outsiders without their agreement.[21] In responding to these challenges, I hope to buttress the case for adopting potentially restrictive immigration policies on grounds of national self-determination.

The first challenge points to the fact that liberal democracies are almost without exception plural societies, which are not only divided historically into subregions (or even in some cases subnations), but have managed to absorb significant numbers of immigrants from a wide range of cultural backgrounds without either falling apart or losing their democratic credentials. So even if there were a case to be made in favor of cultural homogeneity, there is no chance of achieving it. Moreover, why should diversity be a problem, so long as almost everyone is willing to play by the rules of the democratic game and accept the decisions of the majority when either/or choices have to be made?

To respond to this challenge, we need to look more closely at what "culture" means for purposes of the immigration debate: the term itself is multiply ambiguous. One relevant distinction is between private and public culture. By "private culture" I mean a person's beliefs about what is valuable in her own life: how she should dress, what food she should eat, how she should conduct her personal relationships, what religion she should espouse, what forms of art or music are worth experiencing, and so on. In contrast, by "public culture" I mean a shared (overlapping rather than identical) set of beliefs about the values the wider society should embody and pursue: how people should conduct themselves in public space, what the society should be proud of and what it should be ashamed of, what kind of political system it should have, what the future goals of the society should be, and so on. Obviously, these two forms of culture are not sealed off from one another. A person's private values are likely to influence her public attitudes. But the distinction matters because different forms of private culture can usually coexist peacefully, whereas in the case of public culture there needs to be a considerable degree of convergence if the society is going to function without serious conflict. To put it simply, one can have a state made up of meat eaters and vegetarians in roughly equal numbers,[22] but not one similarly composed of democrats and theocrats. The issue, therefore, is not just the extent of cultural diversity but the kind of diversity that is involved.

A second distinction is also worth drawing. One can look at a culture in terms of its content, as I have done in the previous paragraph. But one

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can also look on culture as a source of identity. Where a private culture is shared among a large number of people, as often happens, it is important whether the cultural group that is formed in this way becomes exclusive and separated from other groups. The concern here is the formation of what are often described as "parallel societies" where minorities retreat into enclaves with rather little contact with those from outside of their own community.[23] This might happen, for example, on the basis of linguistic or religious differences. Then two consequences may follow. One is that such groups may cease to participate in the shared public culture of their society simply because they have little contact with it. Their sources of information and of value are different; they don't feel the need to engage in any kind of political interaction with those outside of their own circle. The other is that levels of intergroup trust decline, because when people don't have much contact with those who are seen as belonging to an enclosed cultural group, it is easy for negative stereotypes of that group to be formed.

What are the implications for immigration? The key issue is the kind and the scale of cultural diversity that immigration will introduce. How likely is it that immigrants will form themselves into self-contained groups standing apart from the rest of the society, and if they do, what are the implications for public culture? The volume of immigration matters here because the larger it is, the greater chance there is for cultural enclaves to form, and the more work the institutions that are set up to integrate immigrants into the public culture will have to do. The concern, then, is not with diversity itself. We can agree that having a greater diversity of private cultures in a society may be positively a good thing, and certainly not harmful. The real issue is about areas in which private culture and public culture intersect—in which it becomes harder to reach agreement on public matters because people approach them on the basis of conflicting and privately held beliefs and values—and with the possible alienating effect of separate and exclusive cultural identities.

Behind these concerns lie some assumptions about how a democratic society should function, which can be brought out into the open by considering the second challenge to closed borders, which questions the value of political self-determination.

What does "self-determination" mean in the present context? We should not confuse it with democracy as an institutional mechanism for making

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political decisions, even though democracy understood in this way will normally be the best vehicle for achieving self-determination. Self-determination assumes that there exists a group—the "self"—that is sufficiently cohesive that one can attribute to it a range of aims and values that the members recognize as part of their collective identity, even though no individual member is likely to subscribe to all of them. The group is self-determining to the extent that it is able to order its activities and shape its surroundings in the light of these common aims and values: its members can feel that they are in control of their own destiny. There is no mystery about why in general self-determination is valuable. Think of a theater company whose members want to develop a particular kind of experimental drama. To the extent that they are able to decide which plays to perform, where to perform them, who gets which parts, and so on, they can feel that they are pursuing the values they believe in. If these matters are decided by an impresario who holds the purse strings but doesn't understand the group's aims in the same way, their ambitions will be frustrated. The real question is whether something similar applies when we move to national level and consider why self-determination should matter to the citizens of a modern state, especially when as individuals the opportunity they have to influence the future direction of their society is much smaller than the opportunity each actor has to decide how the theater company should develop.

The first thing to notice is that it clearly does matter in fact. John Stuart Mill once remarked that "the sole evidence it is possible to produce that anything is desirable, is that people do actually desire it."[24] This may be an overstatement, but it is surely relevant when considering the value of national self-determination to observe what people are willing to do to obtain it. Consider the phenomenon of decolonization: why have people been so eager to throw off colonial rule and be governed by those they regard as their compatriots even when there was little evidence that the quality of their governance would actually improve as a result? Such eagerness makes sense if you think that it is better to be governed by somebody who shares your aims and values even if they are not particularly effective at implementing them. At least you can identify with the decisions that are taken whatever the results turn out to be. Or consider secessionist movements within states that are already democratic: the claims for self-government made by the Catalans, the Scots, and the Quebecois, for instance. We might not regard these

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claims as fully justified, but we have no difficulty in understanding them. When Quebec nationalists assert that they wish to be "Maîtres Chez Nous," that wish is perfectly comprehensible: we are our own people, and we want the right to decide what goes on around here. If we decide after all that these nations do not have a justified claim to full independence, this is not because their desire for self-determination is irrational: it is because they have taken too narrow a view of the self in that expression, failing to acknowledge their deep historical bonds with a larger nation that also has valid self-determination claims.

Despite this impressive body of evidence about the subjective importance of self-determination, critics may argue that at national level it is largely illusory. Even if the political system is democratic, they will say, the decisions taken at best reflect the views of the majority, rather than of the nation as a whole. But this underestimates what a well-functioning democracy can achieve. As I have suggested, it can aim to be deliberative, where minority views are listened to and taken into account, and decisions are based on common ground wherever possible. For this, of course, the area of common ground needs to be quite extensive, which is why deliberative forms of democracy depend upon a large measure of agreement in the background public culture. Democracy in the modern age must primarily be practiced through representative institutions (although there are increasing opportunities to supplement this by direct participation, through citizen juries, deliberative opinion polls, and other means of eliciting an informed public opinion). What is important for self-determination under these circumstances is that the reasons behind the decisions that are taken should be made public, so that they can be understood, and in the best case accepted, by those who are not directly involved in making them.

In arguing that people have an important interest in belonging to a self-governing political community, I have not argued that there is actually a *right* to self-determination. I refrain from taking this further step because the extent to which any particular person is able to enjoy the collective self-determination she seeks is going to depend on circumstances—including whether the group she identifies with recognizes her as a member, and whether, assuming it does, it is actually in a position to make self-determination a feasible option (it might lack the necessary resources, or unavoidably fall under the dominion of some larger group). Talk of rights suggests more determi-

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nacy than is possible here. But if self-determination is an interest rather than a right, why must it outweigh the competing interests of would-be immigrants in cases of conflict (i.e., where a self-governing community wishes to exclude some immigrants, for reasons of the sort that I canvassed above)? However much value existing citizens attach to controlling the future shape and size of their community, why must this count for more than the strong interest an immigrant might have in moving to a place where he can enjoy the opportunities that matter to him most?[25]

Notice, however, the perspective from which this question is being asked. It implicitly assumes a strong cosmopolitan commitment where interests are being given equal weight when they come into conflict regardless of whose interests they are. In contrast, if we assume that we owe special obligations to our compatriots, then all we are required to do is to give due consideration to the claim of the prospective immigrant, in accordance with the weak cosmopolitan principle defended in Chapter 2. We do not have to give her claim the same weight as we give to the claims of compatriots (she of course will have special claims against her own compatriots).[26] The strength of her claim will undoubtedly vary. At one extreme, she might merely have an interest in moving to a more congenial cultural environment. At the other extreme, she might be facing a threat to her human rights that can only be met by migrating; or, a different case, she might be entitled to enter under a policy that has already been agreed. In these latter cases, her claim may well be strong enough to outweigh the more routine interests of current citizens, for example, their wish to avoid overcrowding. This is a matter for debate and decision inside the political community. What justice requires is that the interest a particular immigrant (or group of immigrants) has in entering should be properly assessed and weighed against the interests of citizens in self-determination, but in the weighing process a degree of compatriot partiality is permissible.

In reaching this conclusion, I have been assuming that a state that refuses to admit an immigrant is simply withholding a benefit that it might otherwise have granted. But this way of describing the situation has been challenged by Arash Abizadeh, who argues that when a state implements border controls it *coerces* all those who might have been admitted—not only those who are actually trying to enter, but even those who have no particular wish to do so.[27] Because border controls are coercive, he argues, they

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must be subject to democratic ratification by a body that includes both those inside the state and those outside, on the grounds that coercion can only be legitimate when it is justified in this way. The upshot is that no state is entitled to close its borders unilaterally. As Abizadeh puts it, "the regime of control must ultimately be justified to foreigners as well as citizens. As a consequence, a state's regime of border control could only acquire legitimacy if there were cosmopolitan democratic institutions in which borders received actual justifications addressed to both citizens and foreigners."[28]

Abizadeh's argument here relies on two main premises: that for coercion to be legitimate it must be justified in a democratic forum that includes all of the people toward whom it is exercised; and that the state coerces potential immigrants when it refuses their request to enter. Most of what I have to say relates to the second premise, but it is worth spending a little time on the first. Assuming for the moment an intuitive understanding of what it means to coerce someone, it does not seem that coercion always requires democratic justification. In fact it seems clear that it does not: coercion is often justified simply in terms of its consequences. If I come across someone beating up a small child and I use coercive force to make him stop, there is no need to justify my action to anyone in particular, least of all the child beater. The same applies if my friend is rolling drunk at the end of the evening and proposing to drive home. When I confiscate his car keys and bundle him into the back of my car, I do not have to obtain even *his* agreement, let alone the consent of some democratic body.[29]

So why then do we think that the coercion that the state exercises when it imposes its regime of law upon us needs to be legitimated by democratic means?[30] The two key aspects here are, first, that the threat of coercion is pervasive because the state orders our whole existence by the constraints and requirements it imposes. The state, then, threatens to dominate us: to make us live according to its, rather than our, vision of how life should be led. Second, it is very often controversial whether any particular regulation is needed at all, or if it is what form it should take. My examples in the previous paragraph were straightforward. No one could doubt that the use of coercion was justified in the cases I described. But when the state requires us to pay taxes, or to be educated, or to fight in its wars, the position is much less clear. Even those who accept that these general aims are legitimate ones may disagree strongly about the way they are being pursued in a particular

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case. Democracy, assuming it is effective, limits the use of coercive force to those cases where it is really needed to ensure justice and promote the welfare of citizens, by requiring that the citizens themselves should signal their approval.

So the thesis that coercion requires democratic legitimation holds only under specific circumstances, paradigmatically in the interaction between the state and its citizens. What about the relationship between the state and foreigners? If it coerces them, must it grant them access to a democratic forum? There seems to be no such general requirement. When the state repels an invading army by force, which must surely involve numerous acts of coercion, it does not have to engage in democratic deliberation with the invaders to justify what it is doing. If the current inhabitants are entitled to be on the territory, and the state is their authorized representative, then the invaders have no business to be disrupting the established political order, and that ends the matter. The same applies when the state excludes an individual person whom it justifiably regards as a threat to its citizens. But perhaps the case is different with immigrants, who in general don't pose any threat of that kind. I have said already that if their claim to enter is turned down, they are owed an explanation for the refusal. Must that involve creating a democratic forum in which the state's immigration policy can be discussed?

Here we need to examine the second premise relied on by Abizadeh, that immigration controls are necessarily coercive.[31] It is easy to jump to this conclusion by focusing attention on the means that states use to enforce their immigration rules against those who try to evade them, because these very often do involve coercion. When people are handcuffed and put on planes to be deported back to where they came from, or the boats they are traveling on are forced to turn around and head back to a home port, these are rightly described as coercive measures. But the question is whether the act of exclusion itself, as opposed to the means used to enforce it, is coercive. Here it can be helpful to think of a largely hypothetical case in which a state has simply erected an impenetrable barrier along its borders, so that people trying to enter without permission find their path blocked. Are they being coerced when they are obliged to turn back? To answer this question we need to understand what coercion means and why using it calls for special justification.

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The central case of coercion is one in which agent A forces agent B to do something that he would not otherwise have done by threatening B with some bad consequence if he does not comply; and the something in question is something that A wishes to be done.[32] Thus a mugger coerces his victim to hand over her purse, which she would not otherwise have been willing to do, by threatening her with a knife. When coercion succeeds, A imposes his will upon B; B's action is no longer her own, but something done at A's behest. Since we believe in general that people should be autonomous, and coercion removes their autonomy for as long as it lasts, there is a strong presumption against it—which can, however, sometimes be overridden, as my examples of the child beater and the drunken friend showed.

Coercion needs to be distinguished from prevention. When I coerce someone, I narrow down her options to the one thing that I want her to do—hand over the purse, for example. When I prevent someone, I remove one option from the existing set, but leave many others available to be selected. If I prevent a stranger from entering my house, he still has plenty of alternative places in which to seek accommodation. So prevention needs much less justification than coercion, in general. How much it needs may depend on the value to the agent of the action that is being prevented. Notice too that pure cases of coercion and prevention stand at opposite ends of a spectrum, and in between will lie instances in which an intervention rules out many options for the person concerned but leaves a similar number available. How we classify these cases may depend on how valuable, respectively, are the options that are ruled out and those that are left open.

With that conceptual apparatus in place, we can now tackle the question of whether immigration controls are necessarily coercive. I argue that they are not. The immigrant is being prevented from doing something—entering the United States, for example—that he may very much want to do, but he is not being forced to do anything else in particular. He is left with all the options that are available to him in his home country, together with the options that are open in other countries that will take him in.[33] The U.S. authorities are not trying to direct his life, even though they may be frustrating his wishes by excluding him. If the immigrant enters illegally, he may become subject to coercive means to remove him, just as I may have to call the police to get rid of an unwelcome intruder in my house—but that does not imply that initially refusing entry was *itself* coercive, in either case.

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If border controls really were coercive, in the proper sense of that term, they would be hard to justify. The reasons I gave in the earlier part of the chapter for restricting immigration—concerns about self-determination, the functioning of democracy, and population size—although weighty enough, would hardly seem sufficient to exclude immigrants who posed no direct threat to the inhabitants if exclusion was a form of coercion. Perhaps it would be necessary to follow Abizadeh's lead and invent democratic forums in which potential immigrants were represented, although Abizadeh himself admits that turning principle into practice would be a complicated matter.[34] Once we see that closing borders is properly understood as preventative, by contrast, we can then direct our attention more fruitfully to two other questions: how strong, relatively speaking, are the claims that different categories of immigrants can make to enter? And what forms of coercion may and may not justifiably be used against those who enter in defiance of the state's laws? Another way of putting this is to ask what responsibilities states have toward prospective immigrants once we grant that states have the right to close their borders. This question is taken up in the chapters that follow.

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